

UPSC GS-II POLITY

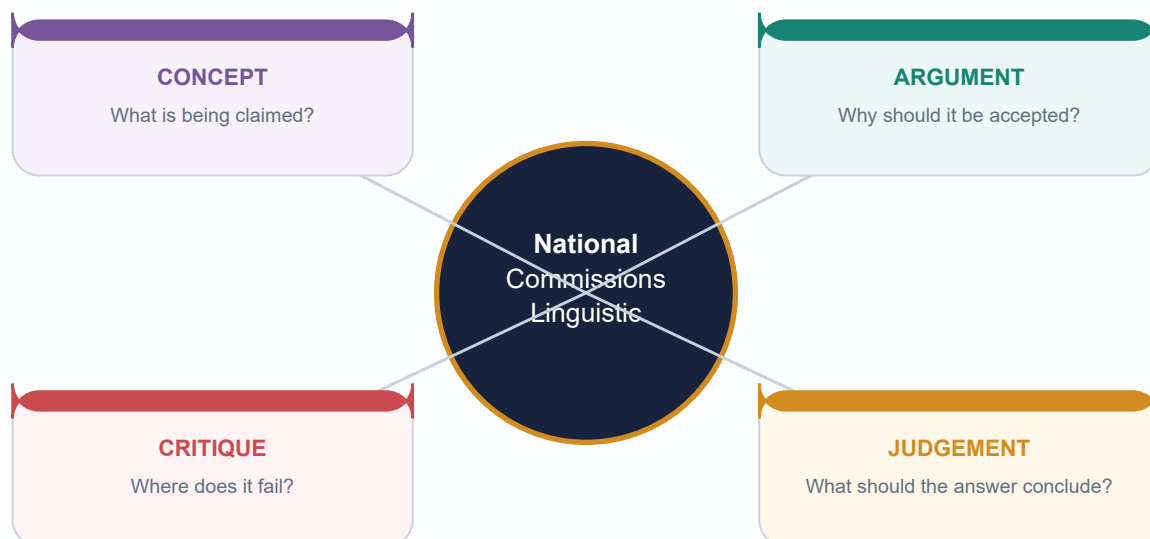
National Commissions (SC / ST / BC) & Linguistic Minorities

Integrated Basic + Advanced Course

9 deep-learning modules | Articles 338, 338-A, 338-B & 350-B

Composition, evolution, functions, case law, institutional tensions and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikanth Ch. 47-50) and official updates



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. The Big Picture: Constitutional vs Statutory Bodies

GS-II Polity -
Social Justice

NEWS TRIGGER

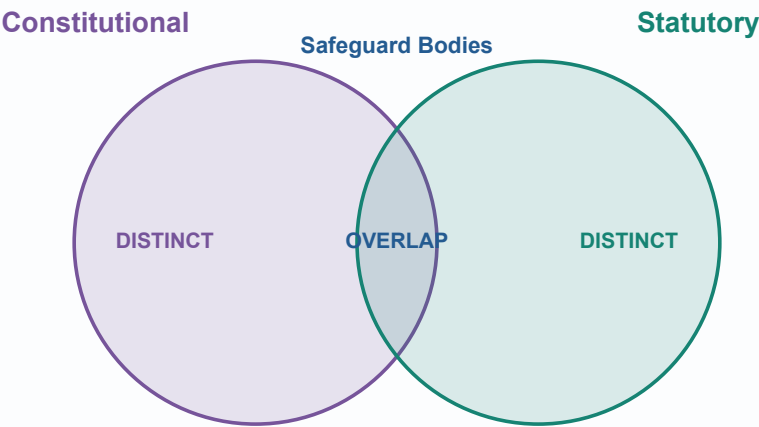
Caste-census demands and SC sub-classification rulings have renewed focus on which safeguard bodies for social justice are constitutional and which are merely statutory.

INTRO & ORIGIN

Four bodies safeguarding SCs, STs, BCs and linguistic minorities have constitutional status; several other well-known commissions are only statutory, created by ordinary Acts of Parliament.

This constitutional/statutory distinction is one of the most frequently tested traps in this area of Polity.

CONSTITUTIONAL BODIES VS STATUTORY BODIES



Constitutional

- NCSC - Art 338
- NCST - Art 338-A
- NCBC - Art 338-B (since 2018)
- Linguistic Minorities Commissioner - Art 350-B

Safeguard Bodies

- Both types investigate safeguards & report on their subject
- Both submit reports through the government

Statutory

- National Commission for Women (1992)
- National Commission for Minorities (1993)
- NHRC (1993)
- NCPCR (2007)

Only SC, ST, BC and Linguistic Minorities safeguard bodies are constitutional.

KEY DATA

Body	Article	Status
National Commission for SCs (NCSC)	338	Constitutional
National Commission for STs (NCST)	338-A	Constitutional
National Commission for BCs (NCBC)	338-B	Constitutional (since 2018)
Commissioner for Linguistic Minorities	350-B	Constitutional office

STATIC THEORY

- Constitutional status means the body's existence and basic character are guaranteed by the Constitution itself, not by an ordinary law that Parliament could repeal.
- The National Commissions for Women, Minorities, Human Rights and Child Rights are all statutory - created by Acts of Parliament, not by constitutional provisions.
- NCBC is the most recently 'promoted' body - it was statutory from 1993 until the 102nd Amendment (2018) gave it constitutional status.

MEMORY HOOK

CONSTITUTIONAL = SC (338) + ST (338-A) + BC (338-B) + LINGUISTIC MINORITIES (350-B)

MUST-KNOW FACTS

1. NCSC, NCST, NCBC and the Commissioner for Linguistic Minorities are constitutional bodies.
2. The National Commissions for Women, Minorities, Human Rights and Child Rights are statutory bodies.
3. NCBC gained constitutional status only in 2018, via the 102nd Amendment.

UPSC TRAPS

WRONG: The National Commission for Women is a constitutional body.

CORRECT: It is statutory, created by the National Commission for Women Act, 1992.

WRONG: NCBC has always been a constitutional body.

CORRECT: It was statutory (1993) until the 102nd Amendment (2018) gave it constitutional status.

MAINS ANGLE

Constitutional status alone does not guarantee effectiveness - examine this claim with reference to the powers and record of the SC/ST/BC commissions.

STUDY LINK

Polity -> Social Justice -> Constitutional vs Statutory Bodies

HIGH

2. NCSC & NCST: From a Single Officer to Two Commissions

GS-II Polity -
Institutional
Evolution

NEWS TRIGGER

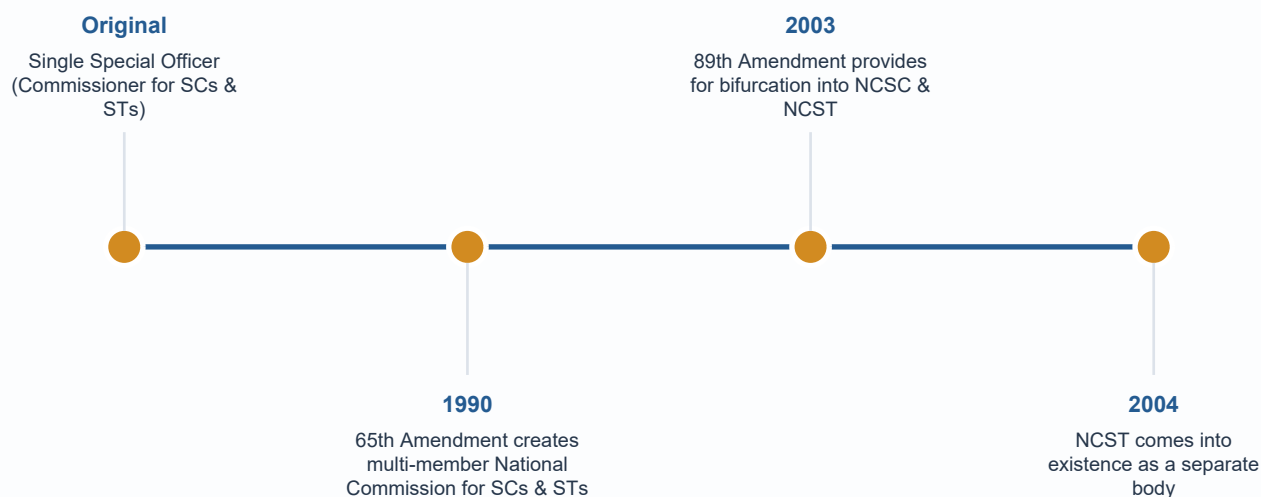
The bifurcation of a single safeguard body into NCSC and NCST is a classic example of institutional specialisation in India's social-justice architecture.

INTRO & ORIGIN

Originally a single Special Officer (Commissioner for SCs & STs) safeguarded both communities; the 65th Amendment (1990) created a multi-member National Commission for SCs & STs.

The 89th Amendment (2003) bifurcated this combined body into the separate NCSC (Art 338) and NCST (Art 338-A) - NCST came into existence in 2004.

NCSC-NCST: EVOLUTION TIMELINE



KEY DATA

Stage	Institutional Form
Pre-1990	Single Special Officer for SCs & STs
1990 (65th Amdt)	Combined multi-member National Commission for SCs & STs
2003 (89th Amdt)	Constitutional provision for separate NCSC (338) & NCST (338-A)
2004	NCST begins functioning as a distinct commission

STATIC THEORY

- The single-officer-to-combined-commission-to-two-commissions sequence shows a deliberate move toward community-specific specialisation.
- The 89th Amendment (2003) is the enabling law; NCST's actual separate existence dates from 2004 - a frequently confused date pair.
- Splitting the bodies allowed NCST to develop tribal-specific functions (forest, mining, PESA/FRA linkages) that a combined body could not focus on as sharply.

MEMORY HOOK

SPECIAL OFFICER -> 1990 (65th, combined) -> 2003 (89th, bifurcation law) -> 2004 (NCST begins)

MUST-KNOW FACTS

1. The 65th Amendment (1990) created a combined National Commission for SCs & STs.
2. The 89th Amendment (2003) provided for bifurcating this into NCSC and NCST.
3. NCST came into existence as a separate commission in 2004.

UPSC TRAPS

WRONG: NCSC and NCST have always been separate commissions.

CORRECT: They were combined until bifurcated by the 89th Amendment (2003), with NCST starting in 2004.

WRONG: The 89th Amendment itself created NCST in 2003.

CORRECT: The 89th Amendment (2003) enabled the bifurcation; NCST actually came into existence in 2004.

MAINS ANGLE

Trace the institutional evolution of safeguard bodies for Scheduled Castes and Scheduled Tribes from a single Special Officer to two separate constitutional commissions.

STUDY LINK

Polity -> NCSC/NCST -> Institutional Evolution | Social Justice -> SC/ST Safeguards

HIGH

3. NCSC & NCST: Composition, Functions & Civil-Court Powers

GS-II Polity -
Composition &
Functions

NEWS TRIGGER

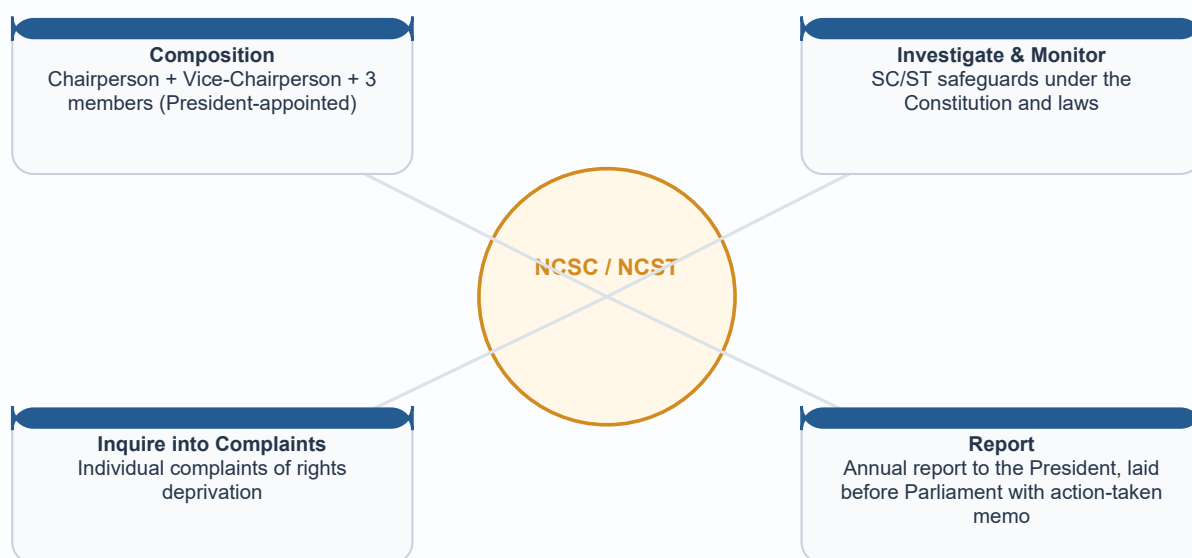
Complaints of SC/ST safeguard violations are formally investigated using civil-court-style powers that these commissions exercise.

INTRO & ORIGIN

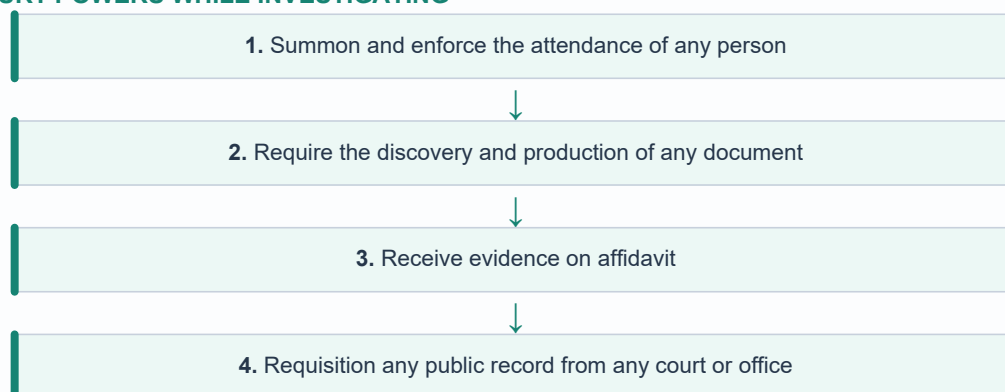
Each commission is composed of a Chairperson, Vice-Chairperson and 3 members, appointed by the President by warrant under hand and seal.

Their core functions are to investigate and monitor SC/ST safeguards, inquire into complaints, and advise on socio-economic development, reporting annually to the President.

NCSC / NCST AT A GLANCE



CIVIL-COURT POWERS WHILE INVESTIGATING



STATIC THEORY

- The Chairperson + Vice-Chairperson + 3-member structure is identical for NCSC, NCST and (as seen later) NCBC - a useful cross-body memory anchor.
- Civil-court powers let these commissions compel evidence during investigations, strengthening their fact-finding credibility.
- The annual report to the President, followed by tabling in Parliament with an action-taken memorandum, mirrors the Finance Commission's reporting pattern.

MEMORY HOOK

1 CHAIR + 1 VICE-CHAIR + 3 MEMBERS = EVERY SC/ST/BC COMMISSION

MUST-KNOW FACTS

1. NCSC and NCST each have a Chairperson, Vice-Chairperson and 3 members.
2. Members are appointed by the President by warrant under hand and seal.
3. Both commissions have civil-court powers while investigating complaints.
4. Their annual report goes to the President and is laid before Parliament with an action-taken memorandum.

UPSC TRAPS

WRONG: Each commission has a chairman plus 5 members.

CORRECT: It has a Chairperson, Vice-Chairperson and 3 members - a distinct composition.

WRONG: These commissions cannot compel evidence or summon witnesses.

CORRECT: They have civil-court powers - summoning persons, requiring documents, receiving affidavits, requisitioning records.

MAINS ANGLE

Examine whether the civil-court powers and annual reporting mechanism of the NCSC and NCST are adequate to ensure effective enforcement of SC/ST safeguards.

STUDY LINK

Polity -> NCSC/NCST -> Composition & Powers | Social Justice -> Enforcement Mechanisms

HIGH**4. NCST's Tribal-Specific Extra Duties**

**GS-II Polity -
Tribal
Safeguards**

NEWS TRIGGER

Forest-rights and mining-law disputes in tribal areas often turn on NCST's additional, tribe-specific mandate beyond the general SC/ST functions.

INTRO & ORIGIN

Beyond the functions shared with NCSC, the NCST has extra duties specific to tribal safeguards - covering forest and mining law, minor forest produce, and linkages with PESA and the Forest Rights Act (FRA).

These extra duties reflect the distinct land, forest and livelihood dimensions of tribal life that a generic SC/ST body could not address as specifically.

NCST'S ADDITIONAL TRIBAL MANDATE**NCST Extra Duties**

Forest & Mining Law Safeguards under forest and mining legislation	Minor Forest Produce Protection of tribal rights over minor forest produce
PESA Linkage Panchayats (Extension to Scheduled Areas) Act connections	FRA Linkage Forest Rights Act implementation and monitoring

KEY DATA

Extra Duty	Why It Matters
Forest & mining law safeguards	Tribal livelihoods are closely tied to forest and mineral-rich land
Minor forest produce	A key tribal livelihood resource needing specific protection
PESA linkage	Ensures Scheduled Area self-governance safeguards are monitored
FRA linkage	Connects NCST's mandate to individual/community forest rights recognition

STATIC THEORY

- These extra duties distinguish NCST from NCSC - a frequent basis for 'which of the following is true only of NCST' style questions.
- PESA and FRA linkages show that NCST's mandate extends into land and self-governance issues, not merely social-safeguard monitoring.
- Minor forest produce protection connects NCST's constitutional mandate to a concrete economic-rights issue for tribal communities.

MEMORY HOOK

NCST EXTRA = FOREST/MINING LAW + MINOR FOREST PRODUCE + PESA + FRA

MUST-KNOW FACTS

1. NCST has extra duties beyond those shared with NCSC.
2. These cover forest and mining law safeguards, minor forest produce, and PESA/FRA linkages.

UPSC TRAPS

WRONG: NCSC and NCST have exactly identical functions with no distinction.

CORRECT: NCST has additional tribal-specific duties - forest/mining law, minor forest produce, PESA/FRA linkages.

MAINS ANGLE

Examine how NCST's additional tribal-specific mandate (forest, mining, PESA, FRA) equips it to address issues that a generic SC/ST safeguard body could not.

STUDY LINK

Polity -> NCST -> Tribal Safeguards |
Environment -> Forest Rights Act

HIGH**5. NCBC: From Mandal Case to Constitutional Status**

GS-II Polity -
Institutional
Evolution

NEWS TRIGGER

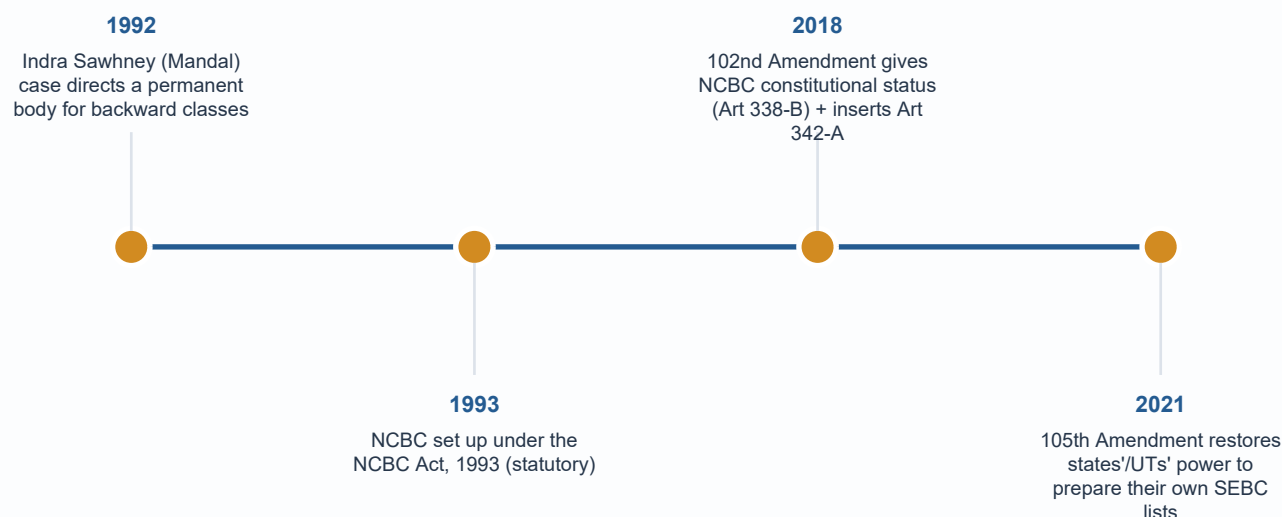
Caste-census and OBC-reservation debates repeatedly return to the constitutional journey of the National Commission for Backward Classes.

INTRO & ORIGIN

The Indra Sawhney (Mandal) case, 1992, directed the creation of a permanent statutory body for backward classes, leading to the NCBC's establishment in 1993 under the NCBC Act.

The 102nd Amendment Act, 2018 gave NCBC constitutional status (Art 338-B) - on par with NCSC/NCST - and inserted Article 342-A, empowering the President to specify socially and educationally backward classes.

NCBC: INSTITUTIONAL EVOLUTION



KEY DATA

Milestone	Significance
Indra Sawhney (1992)	Directed the creation of a permanent body for backward classes
NCBC Act, 1993	Established NCBC as a statutory body
102nd Amendment, 2018	Made NCBC constitutional (Art 338-B); inserted Art 342-A
105th Amendment, 2021	Restored states'/UTs' power over their own SEBC/OBC lists

STATIC THEORY

- NCBC's journey - statutory (1993) to constitutional (2018) - directly parallels how social-justice institutions can be constitutionally 'upgraded' over time.
- Article 342-A empowers the President to specify socially and educationally backward classes (SEBCs) for the central list.
- The 105th Amendment (2021) was a corrective response after the Supreme Court's reading of the 102nd Amendment in the Maratha reservation matter had centralised SEBC-list-making power.

MEMORY HOOK

MANDAL (1992) -> NCBC ACT (1993) -> 102ND AMDT (2018, constitutional + Art 342-A) -> 105TH AMDT (2021, states' lists restored)

MUST-KNOW FACTS

1. NCBC originated from the Indra Sawhney (Mandal) case, 1992.
2. It was established as a statutory body under the NCBC Act, 1993.
3. The 102nd Amendment Act, 2018 gave it constitutional status under Article 338-B and inserted Article 342-A.
4. The 105th Amendment (2021) restored states'/UTs' power to prepare their own SEBC/OBC lists.

UPSC TRAPS

WRONG: NCBC has been a constitutional body since 1993.

CORRECT: It was statutory from 1993 and became constitutional only via the 102nd Amendment, 2018.

WRONG: Only the President can prepare SEBC/OBC lists after the 105th Amendment.

CORRECT: The 105th Amendment (2021) restored states'/UTs' own power to prepare their SEBC/OBC lists.

MAINS ANGLE

Discuss the significance of the 102nd Constitutional Amendment Act, 2018 in relation to the constitutional status of the National Commission for Backward Classes, and the corrective role of the 105th Amendment (2021).

STUDY LINK

Polity -> NCBC -> Constitutional Evolution |
Social Justice -> OBC Reservation

HIGH

6. NCBC: Centralisation vs States' Rights Over SEBC Lists

GS-II Polity -
Institutional
Tension

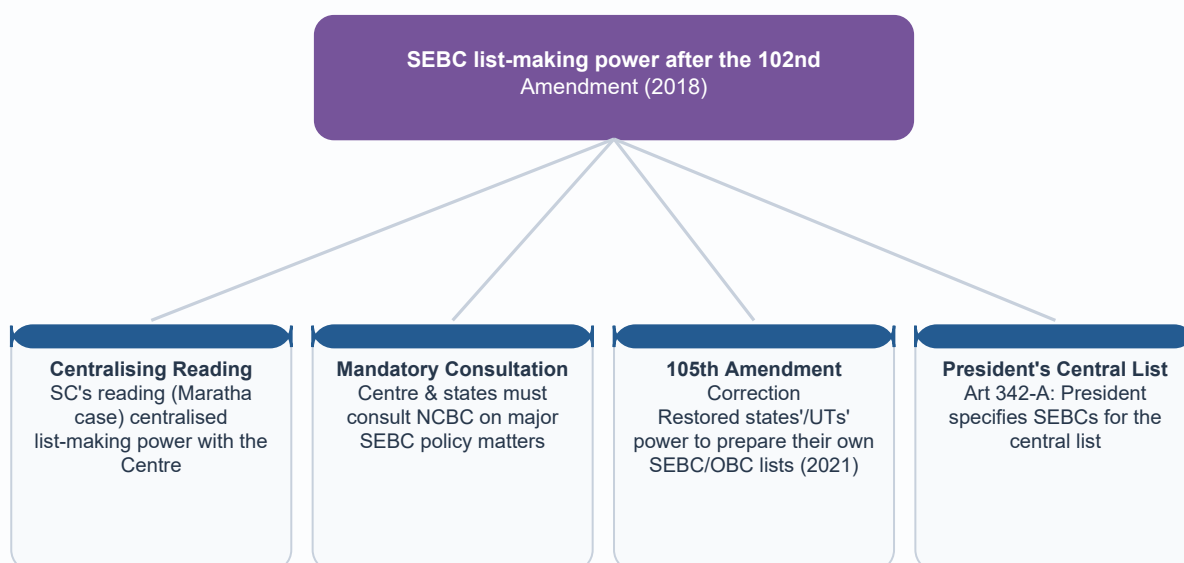
NEWS TRIGGER

The Maratha-reservation dispute exposed a real tension between central and state authority over who decides which communities count as backward.

INTRO & ORIGIN

The Centre and states must consult NCBC on all major policy matters affecting socially and educationally backward classes (SEBCs).

The Supreme Court's reading of the 102nd Amendment had centralised SEBC-list-making power; the 105th Amendment (2021) restored states'/UTs' power to make their own lists.

WHO DECIDES SEBC/OBC LISTS?**STATIC THEORY**

- This module captures a genuine institutional tension - not a settled fact - between central uniformity and state autonomy in backward-class recognition.
- The mandatory-consultation requirement gives NCBC a gatekeeping role even where states retain list-making power.
- The distinction between the President's central SEBC list (Art 342-A) and states' own SEBC/OBC lists (post-105th Amendment) is a frequent source of confusion.

MEMORY HOOK

102ND AMDT (SC reading centralised) -> 105TH AMDT (2021, restored states' lists)

MUST-KNOW FACTS

1. The Centre and states must consult NCBC on all major policy matters affecting SEBCs.
2. The 105th Amendment (2021) restored states'/UTs' power to prepare their own SEBC/OBC lists.
3. Article 342-A empowers the President to specify SEBCs for the central list.

UPSC TRAPS

WRONG: After the 105th Amendment, only the Centre can identify backward classes.

CORRECT: The 105th Amendment restored states'/UTs' own power to prepare their SEBC/OBC lists.

WRONG: NCBC consultation is optional for the Centre and states on SEBC policy.

CORRECT: Consultation with NCBC is mandatory on all major policy matters affecting SEBCs.

MAINS ANGLE

'Constitutional status alone does not resolve federal tensions.' Examine this with reference to the NCBC's role in the Centre-state dispute over SEBC/OBC list-making power.

STUDY LINK

Polity -> NCBC -> Federal Tension | Social Justice -> Reservation Policy

HIGH

7. Commissioner for Linguistic Minorities (Article 350-B)

GS-II Polity -
Linguistic
Minorities

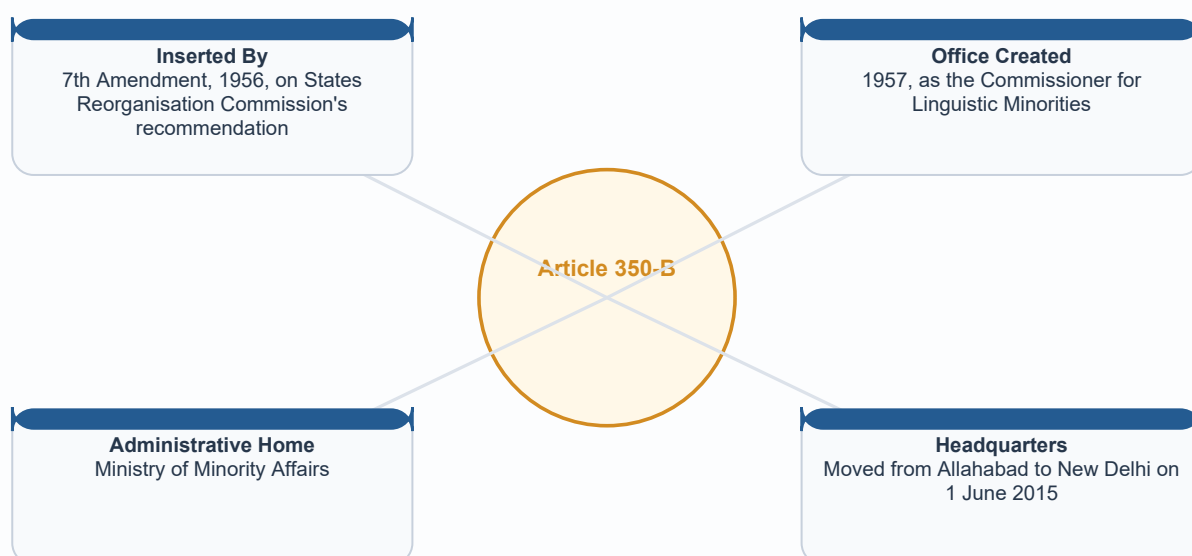
NEWS TRIGGER

Demands to elevate the Linguistic Minorities office into a full statutory commission highlight how under-discussed this constitutional safeguard is.

INTRO & ORIGIN

Article 350-B, inserted by the 7th Amendment (1956) on the States Reorganisation Commission's (1953-55) recommendation, provides for a Special Officer for Linguistic Minorities appointed by the President.

Designated the Commissioner for Linguistic Minorities (office created 1957), this office functions under the Ministry of Minority Affairs; its headquarters moved from Allahabad to New Delhi on 1 June 2015.

COMMISSIONER FOR LINGUISTIC MINORITIES AT A GLANCE

KEY DATA

Point	Detail
Constitutional basis	Article 350-B (inserted by the 7th Amendment, 1956)
Origin	Recommendation of the States Reorganisation Commission (1953-55)
Function	Investigates safeguards for linguistic minorities; reports to the President
Report route	President -> laid before Parliament -> sent to states
Related provisions	Art 350-A (mother-tongue primary education); Art 29 & 30 (cultural/educational rights of minorities)

STATIC THEORY

- The Constitution is silent on this office's qualifications, tenure, salary and removal - unlike NCSC/NCST/NCBC, whose composition is more explicitly structured.
- Placing the office under the Ministry of Minority Affairs (rather than Home Affairs) is a frequently tested trap.
- Article 350-A (education in the mother tongue) and Articles 29-30 (cultural/educational rights) are the constitutional neighbours of this office and are often tested together.

MEMORY HOOK

ART 350-B (7th Amdt, 1956) -> OFFICE 1957 -> MINISTRY OF MINORITY AFFAIRS -> DELHI HQ (2015)

MUST-KNOW FACTS

1. Article 350-B was inserted by the 7th Constitutional Amendment, 1956.
2. The Commissioner for Linguistic Minorities office was created in 1957.
3. It functions under the Ministry of Minority Affairs.
4. Its headquarters moved from Allahabad to New Delhi on 1 June 2015.
5. The Constitution is silent on this office's qualifications, tenure, salary and removal.

UPSC TRAPS

WRONG: The Commissioner for Linguistic Minorities functions under the Ministry of Home Affairs.

CORRECT: It functions under the Ministry of Minority Affairs.

WRONG: Article 350-B fixes the Commissioner's tenure and qualifications.

CORRECT: The Constitution is silent on these matters.

MAINS ANGLE

The neglected Article 350-B: are linguistic minorities adequately protected in India, given the Constitution's silence on the Commissioner's tenure and powers? Discuss.

STUDY LINK

Polity -> Linguistic Minorities -> Art 350-B |
Polity -> Art 29 & 30 (Minority Rights)

HIGH**8. State of Punjab v Davinder Singh (2024): SC Sub-Classification**

**GS-II Polity -
Case Law**

NEWS TRIGGER

The 2024 seven-judge ruling on sub-classification of Scheduled Castes reopened one of the most consequential social-justice debates in recent years.

INTRO & ORIGIN

In *State of Punjab v Davinder Singh* (1 August 2024), a seven-judge Bench overruled *E.V. Chinniah* and permitted sub-classification of SCs supported by quantifiable, demonstrable data.

The Court held that such sub-classification cannot exclude the balance of the Presidential-list class; creamy-layer exclusion for SC/STs was discussed in concurring opinions and earlier promotion cases - not as a single unanimous ratio of all seven judges.

CAN STATES SUB-CLASSIFY SCHEDULED CASTES?



STATIC THEORY

- This ruling directly affects how NCSC's mandate to monitor SC safeguards interacts with state-level reservation policy design.
- The 'quantifiable, demonstrable data' requirement means sub-classification cannot be an arbitrary political exercise.
- The creamy-layer point must be stated carefully - it is not the single unanimous holding of all seven judges, only a theme in concurring/prior jurisprudence; over-simplifying this is a common error.

MEMORY HOOK

DAVINDER SINGH (2024): E.V. CHINNAIAH OVERRULED + DATA-BACKED SUB-CLASSIFICATION ALLOWED

MUST-KNOW FACTS

1. *State of Punjab v Davinder Singh* was decided on 1 August 2024 by a seven-judge Bench.
2. It overruled the earlier *E.V. Chinniah* ruling.
3. SC sub-classification is now permitted if supported by quantifiable, demonstrable data.
4. Sub-classification cannot exclude the balance of the Presidential-list class.

UPSC TRAPS

WRONG: The *Davinder Singh* (2024) ruling banned all sub-classification of SCs.

CORRECT: It permitted sub-classification, provided it rests on quantifiable, demonstrable data.

WRONG: All seven judges unanimously endorsed creamy-layer exclusion for SC/STs as the case's core ratio.

CORRECT: Creamy-layer exclusion appeared in concurring opinions and earlier promotion cases, not as one unanimous ratio of all seven judges.

MAINS ANGLE

Sub-classification of Scheduled Castes and the creamy-layer debate - examine the equality-within-reservation questions raised by State of Punjab v Davinder Singh (2024).

STUDY LINK

Polity -> Reservation Jurisprudence -> Davinder Singh (2024) | Social Justice -> SC Sub-Classification

HIGH

9. UPSC Analysis and Answer-Writing Framework

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

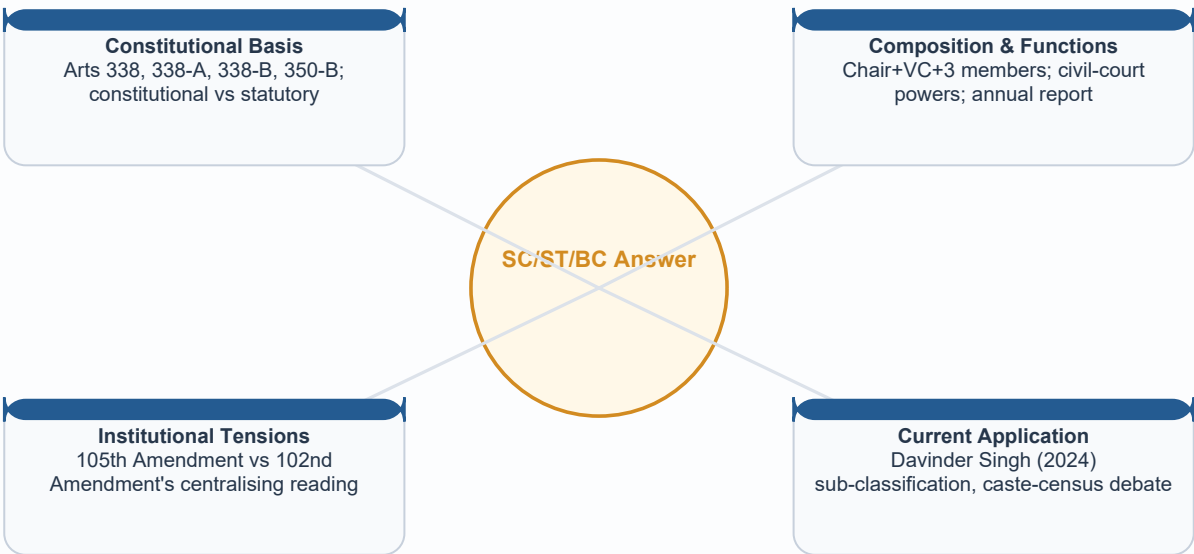
Caste census demands, Maratha-quota agitations and the sub-classification debate keep SC/ST/BC commissions and the 50% reservation ceiling in the exam-relevant news cycle.

INTRO & ORIGIN

A high-scoring answer connects the constitutional design of NCSC/NCST/NCBC to their functional limits (advisory/monitoring role) and to live case law (Davinder Singh, 2024) and federal tensions (105th Amendment).

The examiner rewards a thesis: constitutional status strengthens legitimacy but does not by itself resolve federal or evidentiary disputes over who counts as backward or how sub-classification should work.

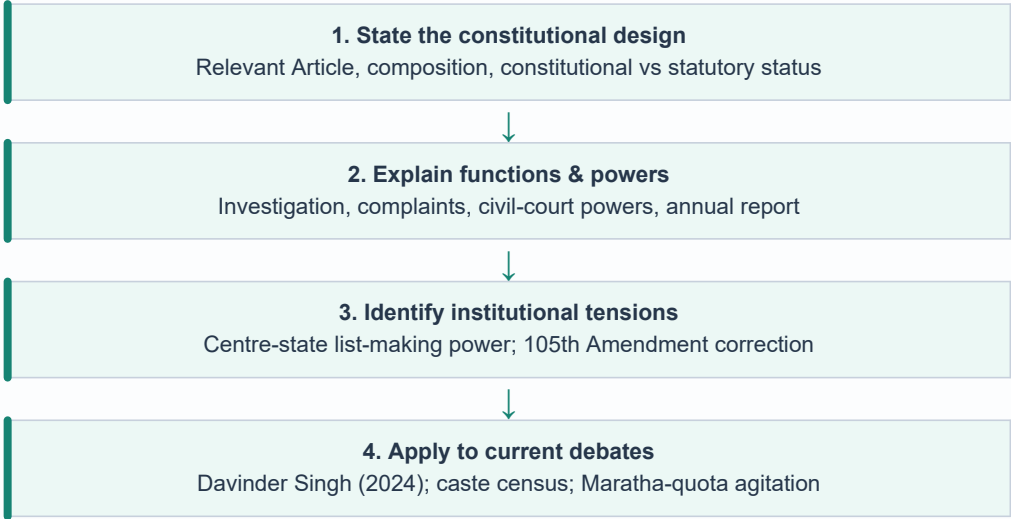
HOW TO ANSWER NATIONAL COMMISSIONS QUESTIONS



KEY DATA

Answer Section	What to Write
Introduction	Constitutional vs statutory safeguard bodies; Articles 338/338-A/338-B/350-B
Body - design	Composition, civil-court powers, annual reporting
Body - institutional tension	102nd vs 105th Amendment on SEBC list-making power
Body - current application	Davinder Singh (2024) sub-classification; caste-census demand
Conclusion	Constitutional status necessary but not sufficient for effective safeguards

THE FOUR-STEP ANALYTICAL METHOD



STATIC THEORY

- Do not present constitutional status as automatically effective - use the 102nd/105th Amendment tension to show that legal design and political practice can diverge.
- Use Davinder Singh (2024) precisely: sub-classification is permitted with data, but creamy-layer exclusion is not its single unanimous ratio.
- Close with a judgement on whether these commissions have kept pace with evolving social-justice debates like caste sub-classification and the 50% reservation ceiling.

MEMORY HOOK

DESIGN -> FUNCTIONS & POWERS -> INSTITUTIONAL TENSIONS -> CURRENT DEBATES

MUST-KNOW FACTS

1. NCSC (338), NCST (338-A) and NCBC (338-B) are constitutional bodies; several other commissions are statutory.
2. State of Punjab v Davinder Singh (2024) permitted data-backed sub-classification of SCs.
3. The 105th Amendment (2021) restored states'/UTs' power over their own SEBC/OBC lists.

UPSC TRAPS

- WRONG:** Treat constitutional status as sufficient proof of a commission's effectiveness.
- CORRECT:** Evaluate effectiveness separately, using functional powers, reporting record and case law.
- WRONG:** Overstate Davinder Singh (2024) as unanimously settling the creamy-layer question for SC/STs.
- CORRECT:** State precisely that creamy-layer exclusion featured in concurring opinions/earlier cases, not as one unanimous ratio.

PROBABLE UPSC APPLICATIONS

Question Theme	Core Argument	Illustration
Constitutional vs statutory bodies	Constitutional status strengthens but does not guarantee effectiveness	NCSC/NCST/NCBC vs NCW/NHRC
SEBC list-making tension	Centralising reading corrected by a later amendment	102nd Amendment vs 105th Amendment (2021)
SC sub-classification	Evidence-based equality within a reserved class	Davinder Singh (2024), E.V. Chinnaiah overruled
Neglected safeguard office	Constitutional silence can weaken an office's functioning	Art 350-B, Linguistic Minorities Commissioner

MAINS ANGLE

Model thesis: Constitutional status has strengthened the legitimacy of India's SC/ST/BC safeguard bodies, but recurring Centre-state tensions over list-making power and evolving case law such as Davinder Singh (2024) show that constitutional design alone cannot resolve the substantive politics of backward-class identification. (No verified specific PYQ citation for this exact question is available in the knowledge base; treat the Davinder Singh (2024) ruling and the 102nd/105th Amendment tension as the most probable Mains anchor - □□ inference, not a fabricated question reference.)

STUDY LINK

GS-II -> Social Justice -> SC/ST/BC
Commissions | Polity -> Reservation
Jurisprudence

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